Federal Republic of Germany — Statutory Immigration Authority

Act on the Residence, Economic Activity and Integration of Foreigners (Aufenthaltsgesetz — AufenthG)
Official Statutory Translation: Section 16b (Higher Education and Student Gainful Employment)
Governing Jurisdiction: Germany (Federal Ministry of Justice & Ausländerbehörde)

Section 16b AufenthG — Higher Education Studies

Subsection (1) Admissions and Preparatory Residence:
For the purpose of full-time studies at a state or state-recognized university or comparable educational institution, a foreign citizen is granted a temporary residence permit (Aufenthaltserlaubnis) if accepted by the educational institution. Residence for study purposes extends to preparatory measures including attending a preparatory language course (Sprachkurs) or foundation college (Studienkolleg). Proof of adequate financial resources (such as a blocked account / Sperrkonto with the minimum statutory amount of 992 EUR per month or 11,904 EUR per year) and statutory health insurance (Krankenversicherung) is mandatory.

Subsection (2) Period of Validity:
The period of validity when the residence permit for study purposes is granted for the first time and for each subsequent extension is normally two years, and generally not less than one year. The permit is extended if the purpose of residence has not yet been achieved and can reasonably be achieved within an appropriate timeframe.

Subsection (3) Gainful Employment and the 140-Day Rule (Arbeitstagekonto)

In accordance with the statutory amendments under the Skilled Immigration Act (Fachkräfteeinwanderungsgesetz), the temporary residence permit issued pursuant to Section 16b entitles the international student to engage in gainful employment under the following exact legal limits:

Core Statutory Rule (The 140-Day Account):
• **Annual Allowance:** Non-EU/EEA international students are permitted to work up to **140 full working days** or **280 half working days** per calendar year without requiring prior authorization or approval from the Federal Employment Agency (Bundesagentur für Arbeit) or the Foreigners' Registration Office (Ausländerbehörde).
• **Definition of Full Day vs. Half Day:** Any daily shift of up to 4 hours is counted as one-half working day. Any shift exceeding 4 hours is counted as one full working day.
• **Alternative Weekly Calculation (20-Hour Rule):** During lecture periods (semesters), employment of up to **20 hours per calendar week** is permissible and is debited as exactly 2.5 working days per calendar week from the student's 140-day account, regardless of daily distribution.
• **Semester Breaks (Lecture-Free Periods):** Full-time employment is permissible during official university vacation periods, provided the cumulative 140 full days / 280 half days per calendar year are not exceeded.
• **Most Favourable Rule (Günstigkeitsprüfung):** The calculation of days versus weekly debits is evaluated automatically in the manner most favourable to the international student on a week-by-week basis.

Subsection (3) Exceptions, Exemptions, and Legal Restrictions

1. Academic and Student Assistant Jobs (HiWi / Studentische Nebentätigkeiten):
Work performed as an academic or student assistant at higher education institutions (universities, colleges) or publicly funded scientific research institutes is **exempt** from the 140-day restriction. Student assistant positions are not counted against the 140-day account. However, students must promptly notify the Foreigners' Registration Office (Ausländerbehörde) of such employment.

2. Mandatory Internships (Pflichtpraktika):
Internships that are prescribed and mandatory under the official study regulations or examination curriculum of the degree

program do not count toward the 140-day limit and do not require additional labor agency consent. In contrast, voluntary internships undertaken outside the mandatory curriculum are categorized as regular employment and consume the 140-day allocation.

3. Prohibition on Freelance and Self-Employment:
Section 16b does not authorize self-employment (Selbstständigkeit) or freelance work (Freiberufliche Tätigkeit). An international student wishing to undertake freelance work or establish a business must apply for and obtain explicit written authorization from the local Foreigners' Registration Office prior to commencing work.

4. Post-Graduation Job-Seeking Right (Section 20 AufenthG):
Upon successful graduation from a German higher education institution under Section 16b, international graduates are entitled to an 18-month residence permit pursuant to Section 20 for the purpose of seeking qualified employment commensurate with their academic degree. During this 18-month job search period, unrestricted gainful employment is permitted.